

**NATIONAL AGENCY FOR EXAMINATIONS (NAE) NATIONAL EXIT
EXAMINATION FOR STUDENTS OF ETHIOPIAN LAW SCHOOLS
2003- 2015 E.C ACADEMIC YEAR Family Law**

1. Which of the following factors necessitated the revision of the Family Law provisions of the 1960 Civil Code of Ethiopia?
 - A. Providing the legal basis which guarantees the equality of the spouses-during the conclusion, duration and dissolution of marriage.
 - B. The need to settle disputes arising out of marriage by a competent authority in a just efficient manner.
 - C. Aligning the family law provisions with the FDRE Constitution and International Human Rights Instruments ratified by Ethiopia.
 - D.** All

2. The principal mode of establishing paternal filiation for children born in a legally recognized union is called _____ .

3. Identify the false statement about dissolution of marriage.
 - A. Violations of essential condition of marriages do not automatically result in marriage.
 - B. By The divorce of a customary marriage may be effected in accordance with rules of a given custom.
 - C. The various grounds of dissolution of marriage may not require judicial intervention.
 - D. Effects of dissolution of marriage are similar despite variation on the grounds thereof.
 - E.** Effects of dissolution of marriage can be regulated by agreement of the spouses.

4. If a creditor lends money to one of the spouses but the maturity date of payment is after dissolution of marriage and liquidation of pecuniary relationships, what is the option available for the creditor to recover his money?

A. He can claim payment from any of the ex-spouses.

B. should demand the ex-spouses to pay his money in proportion to a share they received from partition of property.

C. He can claim payment from the indebted ex-spouse.

D. All

E. None

5. Which one of the following is false about irregular union?

A. It is similar to marriage except that the man and the woman did not go through celebration of marriage.

B. The act of consistent and frequent sexual intercourse between a man and a woman is one indicator for the existence of irregular union.

C. Proof of marriage by possession of status is identical to proof of irregular union by possession of status.

D. It shall create relationship by affinity between a man and the relatives of the woman and vice-versa for the purpose of prohibition of marriage.

E. It has the same effect as marriage from the perspective of filiation of children.

6. Does not affect the validity of adoption agreement.

A. The age of the adopted.

B. The age of the adopter.

C. Number of children of the adopter.

D. Approval of the court.

E. None.

7. As per article 193 of the Revised Family Code, the court shall ensure that the adoption is beneficial to the child prior to approving inter-country adoption. Which one of the following do you think is the relevant factor to the court to determine whether the suggested adoption is to the best interest of the child?

A. The financial capability of the prospective adopter to raise the child.

By' The religion of the adopter.

C. The health condition of the adopter.

D. The fact that adopter has never been convicted of a crime.

E. The written consent of the lawful spouse of the adopter on the adoption.

8. _____ are preferred heirs at law when the deceased is not survived by descendants.

A. Siblings.

B. Grandparents.

C. Parents.

D. Children.

E. Uncles and aunts

9. A legal obligation to supply maintenance does not arise between

A. The adopter and his/her adopted child. -

B. Spouses

C. The husband and his mother-in-law.

D. person and his/her nephew.

E. A person and his great grandparents.

10. One of the following is not true about essential conditions of marriage.

- A. The violation of these conditions renders the marriage void.
- B. Marriage among consanguinal relatives is invariably prohibited.
- C. A man or a woman should not remarry within the next one hundred and eighty days following the dissolution of his/her former marriage.
- D. All
- E. None.

11. The law does not regulate the personal and pecuniary effects of marriage where:

- A. The contract of marriage is invalid.
- B. There is no contract of marriage
- C. The contract of marriage is in harmony with mandatory provisions of the law.
- D. The contracting spouses are incapable of entering into such contracts.
- E. All

12. By analogizing irregular union with marriage, identify the choice that is not a prerequisite for the legal acceptability of irregular union.

- A. Absence of existing irregular union.
- B. Capacity/age.
- C. Consent
- D. Period of widowhood.
- E. None.

13. For presumption of paternity to apply, a child is deemed to be conceived in marriage or irregular union:

- A. If the child is born 180 days after the celebration of the marriage.
- B. If the child is born 210 days after the celebration of the marriage.
- C. If the child is born within 180 days after the dissolution of the marriage.
- D. If the child is born within 300 days after the dissolution of the marriage.

14. Is marriage a contract? If not, list some of the major differences between marriage and other ordinary contracts.

15. What is the consequence of failure to require registration of marriage as stated in article 28 of the Revised Family Code?

16. Why do you think is the law so strict in the adoption agreement of the child when the adopter is a foreigner?

17. One student told to his friend the following. "The violations of all essential conditions to marriage entail the dissolution of marriage." Explain the validity or otherwise of this assertion in the light of relevant provisions of the Federal Family Code.

18. Which one of the following statements is **incorrect** among the given alternatives?

- A. In case of divorce by mutual consent, the court shall automatically declare divorce.
- B. Divorce by mutual consent is necessarily a divorce without a cause.
- C. Divorce by petition is a right to all spouses including the newly married ones.
- D. All.
- E. A&C.

19. Which one of the following statements is wrong about customary and religious marriages?

- A. The validity of both types of marriage is not affected by their registration.
- B. Their substantive requirements are to be prescribed by the relevant custom and religion.
- C. Their formality requirements are to be prescribed by the relevant custom and religion.
- D. They cannot be divorced without the involvement of the court.
- E. None.

20. Is there any possibility for the adopted child to claim maintenance from his family of origin? Why/why not? (5%)

21. Can spouses dissolve their marriage by physically destroying their certificate of marriage without following any additional procedure? Why/ why not? (5%)

22. One of the following cannot be the possible reason for the non-regulation of betrothal under the Federal Family Code.

- A. The recognition by the parliament that betrothal is not a precondition to marriage.
- B. The recognition by the parliament that the practice of betrothal does not exist at all in Addis Ababa and Dire Dawa. /
- C. The recognition by the parliament that property exchange through gift as a consequence of betrothal, if any, could be governed by other provisions of the Civil Code.
- D. The recognition by the parliament that it can continue in its cultural form as long as no legal ban is imposed on the practice of betrothal.
- E. The recognition by the parliament that there is no uniform culture of betrothal in Addis Ababa and Dire Dawa.

23. Who is entitled to lodge opposition to marriage in case where the marriage to be concluded is a bigamous marriage?

- A. The fathers of the future spouses
- B. The uncles of the future spouses
- C. The public prosecutor
- D. Ascendants of one of the future spouses
- E. Brothers and sisters of the future spouses

24. Which one of the following is an additional requirement for the legal acceptability of contract of marriage made by spouses during marriage relative to contract of marriage concluded before or on the date of celebration of marriage?

- A. Approval of the court
- B. Conformity with mandatory provisions of the law
- C. The need to reduce the contract in a written form
- D. The prohibition of simple reference in the contract to local custom, religion or law of a country for the regulation of the personal and pecuniary relations of the spouses
- E. The requirement that the contract shall be signed by the contracting spouses

25. Which one of the following essential condition to the agreement of adoption is the same both for the Civil Code and the Revised Family Code?

- A. Age of the adopter
- B. Age of the adopted
- C. The consent of the parents of adopted child
- D. The non-existence of children of the adopter
- E. The need for the approving court to hear the opinion of the concerned authority in case of inter-country adoption

26. What is the fate of a customary marriage not registered in accordance with the relevant provisions of the Revised Family Code? (5%)

27. It is impossible for any person to make a valid adoption where:

- A. He/she is under the age of twenty five years.
- B. He/she is a married person and the other spouse is not adopting the child conjointly.
- C. The father and mother of the adopted child do not consent to the adoption.
- D. The adopted person attains majority.
- E. He/she is single.

28. According to the revised Family Code,

- A. The husband is the head of the family.
- B. The spouses have equal rights in the management of the family.
- C. The breadwinner spouse shall determine the place of residence of the family.
- D. Spouses may not agree to live in different place for more than one year.
- E. The effect of customary marriage varies depending on the custom according to which it is celebrated.

29. Which one of the following is personal property of the husband in the absence of contract of marriage?

- A. The property he inherited from his father.
- B. His salary.
- C. Income derived from his personal property.
- D. A property he bought by the income he earned from renting his personal property.
- E. A car he won from the national lottery.

30. A contract of marriage shall be of no effect where:

- A. Its copy is not deposited before court or officer of civil status.
- B. It has a provision which impose obligation on third parties.
- C. It is made orally in the presence of four witnesses.
- D. It is made before the conclusion of marriage.
- E. Either of the spouses is illiterate.

31. The agreement of both spouses is not required to:

- A. Sale a common immovable property.
- B. Mortgage a personal immovable property.
- C. Borrow money exceeding one thousand Birr.
- D. Sale common special corporeal chattel.
- E. Sale a common movable property worth eight hundred Birr.

32. Debts incurred to shall not be deemed to be debts incurred in the interest of the household.

- A. Cover the medical expense of the husband.
- B. Cover the tuition fee of the spouses' 18 years old daughter.
- C. Fulfill the livelihood of the spouses and their children.
- D. Fulfill an obligation of maintenance of the wife towards her son born out of wedlock.
- E. Maintain the personal property of one of the spouses.

33. Which one of the following is true about irregular union?

- A. It is a marriage not registered before the officer of civil status.
- B. It is only proved by possession of status.
- C. It creates similar degree of bond of affinity between the man and the relatives of the woman as doe's marriage.
- D. It may not create communality of property irrespective of the agreements of the parties.
- E. It shall be dissolved by the decision of the court.

34. Which one of the following is correct about irregular union?

- A. Consent of the man and the woman is essential to form valid irregular union.
- B. It is not necessary that the behaviors of the man and of the woman be analogous to that of married people.
- C. It is necessary that the man and the woman represent themselves to third parties as being married.
- D. The fact that a man and a woman keep up sexual relations between them is sufficient to constitute an irregular union.
- E. There shall not be any bond of consanguinal relation between children born out of an irregular union and the relative of the woman or the man in an irregular union.

35. Certificate of marriage:

- A. Is a document which governs the pecuniary and persona effect of marriage between spouses.
- B. Is drawn up by an officer of civil status after registering the marriage.
- C. Shall be drawn up before or on the date of celebration of marriage.
- D. Is the only means of proving marriage.
- E. Is not necessary for religious and customary marriage

36. Identify the correct statement.

- A. The obligation to supply maintenance to relatives ceases to exist where the person who is in need attains the age of majority.
- B. An adopted child may claim maintenance as he wishes either from his family of origin or adoptive family.
- C. An adopted child may not have the right to claim maintenance from the parents of his adoptive family who oppose the adoption.
- D. A man is obliged to supply maintenance to destitute father of his ex-wife who divorced him.

37. The court is not the only organ competent to:

- A. Solve marital disputes.
- B. Decide on the existence of marriage.
- C. Decide on the validity of marriage.

D. Decide on the presence of an irregular union.

E. Pronounce divorce.

38. Which of the following is valid about relationship by affinity according to the Revised Family Code?

A. Relationship by affinity is created as a result of blood relationship.

B. Relationship by affinity is created as a result of contractual relationship.

C. It has an effect between the relatives of the spouses.

D. It is not considered as an impediment in forming an Irregular Union.

E. It is considered as an impediment in forming an Irregular Union.

39. Which one of the following statements is wrong about customary and religious marriages according to the Revised Family Code?

A. The validity of both types of marriage is not affected by their registration.

B. Their formality requirements are to be prescribed by the relevant laws.

C. Their substantive requirements are to be prescribed by the relevant custom and religion.

D. Their formality requirements are to be prescribed by the relevant custom and religion.

E. Although both were included in the Civil Code, they are discarded in the Revised Family Code.

40. Which of the following is different among the given alternatives?

A. Respect and Assistance

B. Family Management

C. Cohabitation

D. Duty of fidelity

E. Common Property

41. All are the consequences of divorce in the Revised Family Code except:

- A. Partition of common property
- B. Decision on child custody
- C. Payment of common debt
- D. Decision on child maintenance
- E. **Decision** on Payment of alimony

42. Which of the following can be considered as a ground of annulment of acknowledgement?

- A. Fraud
- B. Mistake
- C. **Violence**
- D. Error
- E. Fault

43. Which one of the following statements is precise about the drive behind the legal recognition of irregular union in the Revised Family Code?

- A. Allowing persons to engage in sexual relationships without first going through marriage ceremony results in decline in public morality.
- B. The law of marriage protects society against being confounded by laxity of morals, promiscuity, free love and generally extravagance.
- C. In relation to preserving public morality, religious authorities raise strong opposition to the entire phenomena of irregular union.
- D. It is historically and practically unusual for people to have intimate relations or to live together without marrying.
- E. **Seen from economic, social and psychological perspectives, irregular unions are functionally identical to marriage.**

44. One of the following is different from the others.

A. Partnership

B. Tax

C. Marriage

D. Will

E. Filiation

45. In which of the following relationships the obligation to pay maintenance is NOT created pursuant to the Revised Family Code?

A. Between spouses

B. To ascendants

C. To descendants

D. Between siblings

E. To uncles and aunts

46. Which of the following best expresses the rationale behind regulating family relationships?

A. It is intended to interfere in the privacy of individuals.

B. It is aimed to avoid social problems and instability.

C. It is because family is the building block of society.

D. It is to protect the weak and ensure their dominance.

E. It is to continue the patriarchal way of society.

47. Which of the following is different from others?

A. Income of the spouses

B. Succession or donations by one of the spouses

C. Income from personal property

D. Pension made during marriage

E. Property acquired during marriage by an onerous title

48. One of the following statements is NOT true about the nature of marriage?

- A. All types of marriage shall satisfy the same validity requirements.
- B. All types of marriage shall be registered before competent officer of civil status.
- C. All types of marriage produce similar legal consequences.
- D. All types of marriage follow the same celebration formality.,
- E. All types of marriage dissolve following similar grounds of dissolution.

49. According to the Revised Family Code, marriage shall produce effect from:

- A. Time of registration of marriage.
- B Time of celebration of marriage.
- C. Time of betrothal of marriage.
- D. Time of issuance of certificate of marriage.
- E. Time of consummation.

50. In the absence of contract of marriage or where the contract of marriage is invalid under the Law, one of the following is a common property

- A. The property which the spouses possess on the day of their marriage.
- B. The property which a spouse acquires by succession after marriage. x
- C. All property acquired by a spouse during marriage by onerous title.
- D. The property which a spouse acquires by donation after their marriage. x
- E. The property which the spouses possess before the day of their marriage. y

51. As a matter of rule, one of the statements is true about administration of personal property.

- A. The spouses shall jointly administer their respective personal property.
- B. Each of the spouses shall freely dispose his/her personal property.
- C. Each of the spouses shall freely dispose the personal property of the other spouse.x.
- D. Each of the spouses shall freely administer the personal property of the other spouse.a
- E. Each of the spouses shall freely collect income from the personal property the other spouse.

52. A spouse can do one of the following transactions without the agreement of the other spouse.

- A. Renting out a commonly owned house.
- B. Exchanging a commonly owned chair which has a value of Birr 600.x
- C. Giving a birthday gift which has a value Bir 300.

D Borrowing Birr 400 from another person,

E. Lending Birr 500 to another person.

53. One of the following is NQT true about the obligation to supply maintenance.

- A. An obligation to supply maintenance exists between ascendants and descendants.
- B. An obligation to supply maintenance exists between persons related by affinity in direct line.
- C An obligation to supply maintenance does not exist between brothers and sisters.
- D. An obligation to supply maintenance subsists between a man and great grandparents.
- E. An obligation to supply maintenance exists between the adopter and an adopted child.

54. Who will be the guardian or tutor of a child who used to live with his mother that has passed away?

- A. The father of the child.
- B. The ascendants of the child.
- C. The brothers or sisters of the child.
- D. The aunt or uncle of the child.
- E. Any relative who best serves the interest of the child.

55. Art. 45(1) of the Revised Family Code prescribes that the spouses shall deposit a copy of contract of marriage in court or with the office of civil status. What is the effect of non-compliance with this requirement particularly with reference to the validity of the contract of marriage? (5 MARKS)

G-MANs 26/08/2016 E.C